

# HOUSE . . . . . No. 1998

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## The Commonwealth of Massachusetts

PRESENTED BY:

*Thomas M. Stanley*

*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act establishing penalties for the filing of false reports against police officers.

PETITION OF:

| NAME:                    | DISTRICT/ADDRESS:                            | DATE ADDED:      |
|--------------------------|----------------------------------------------|------------------|
| <i>Thomas M. Stanley</i> | <i>9th Middlesex</i>                         | <i>1/13/2025</i> |
| <i>Larry Calderone</i>   | <i>Boston Police Patrolmen's Association</i> | <i>1/24/2025</i> |
| <i>John E. Nelson</i>    | <i>Massachusetts Coalition of Police</i>     | <i>1/24/2025</i> |

# HOUSE . . . . . No. 1998

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By Representative Stanley of Waltham, a petition (accompanied by bill, House, No. 1998) of Thomas M. Stanley, Larry Calderone and John E. Nelson relative to establishing penalties for the filing of false reports against police officers. The Judiciary.

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[SIMILAR MATTER FILED IN PREVIOUS SESSION  
SEE HOUSE, NO. 1767 OF 2023-2024.]

## The Commonwealth of Massachusetts

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In the One Hundred and Ninety-Fourth General Court  
(2025-2026)

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An Act establishing penalties for the filing of false reports against police officers.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           Chapter 268 of the General Laws is hereby amended by inserting after section 32B the  
2 following section:—

3           Section 32C. Every person who files any allegation of misconduct against any police  
4 officer, knowing the report to be false, shall be punished by imprisonment in the state prison for  
5 not more than twenty years or by a fine of not more than \$1000 or by imprisonment in jail for not  
6 more than 2 ½ years, or by both such a fine and imprisonment in jail. For the purposes of this  
7 section, “police officer” shall mean an employee of a city, town, county, the Commonwealth or  
8 the Massachusetts Bay Transportation Authority authorized to make arrest. Any law enforcement  
9 agency accepting an allegation of misconduct against a police officer shall require the  
10 complainant to read and sign the following information advisory, all in bold-face type:

11           YOU HAVE THE RIGHT TO MAKE A COMPLAINT AGAINST A POLICE  
12 OFFICER FOR ANY IMPROPER CONDUCT. THIS AGENCY MAY FIND THERE IS NOT  
13 ENOUGH EVIDENCE TO SUBSTANTIATE YOUR ALLEGATION AND WARRANT  
14 ACTION ON YOUR COMPLAINT: EVEN IF THIS IS THE CASE, YOU HAVE THE RIGHT  
15 TO MAKE THE COMPLAINT AND HAVE IT INVESTIGATED IF YOU BELIEVE AN  
16 OFFICER BEHAVED IMPROPERLY.PLEASE BE ADVISED THAT IT IS ILLEGAL TO  
17 MAKE A COMPLAINT YOU KNOW TO BE FALSE. IF YOU MAKE A COMPLAINT  
18 AGAINST AN OFFICER KNOWING IT IS FALSE, YOU MAY BE PROSECUTED ON A  
19 FELONY CHARGE. I HAVE READ AND UNDERSTOOD THE ABOVE STATEMENT. I  
20 FURTHER REALIZE THIS COMPLAINT IS SIGNED UNDER THE PAINS AND  
21 PENALTIES OF PERJURY.